

GENESIS PVB, LLC v GRAFER

18CV43485

DEFENDANT'S MOTION FOR ENTRY OF JUDGMENT

This case involves a failed venture to cultivate marijuana for profit. On August 12, 2024, Defendant/Cross-Complainant George Grafer ("Grafer") entered into a settlement agreement with Cross-Defendant Craig Bordon ("Bordon") at a judicially supervised settlement conference. Now before the Court is Grafer's Motion for Entry of Judgment Pursuant to Code of Civil Procedure section 664.6 ("Motion").

At the outset, the Court notes that the Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In its April 19, 2024, Ruling on Grafer's motion for trial preference, the Court called attention to the failure to include the above requisite language and specifically stated:

In the instant matter, the Court finds that exigent circumstances occur in both motions. (Defendant is cautioned this is a rare instance where the Court does not deny a pending motion for the failure to include the mandated language.)

Defendant failed to heed the uniqueness of the Court excusing the failure to include the mandatory language in the notice. Accordingly, the motion is **DENIED**, without prejudice to refile.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

JOHNSON v CITY OF ANGELS, et al

24CV47321

DEFENDANTS' MOTIONS TO DISMISS

On June 13, 2024, Plaintiff filed a First Amended Complaint ("FAC") alleging "Intentional Tort" against City of Angels Camp ("City"), Mark Twain Elementary School District ("District"), Alvin Broglio ("Broglio"), Rebecca Callen ("Callen"), Jenny Eltringham ("Eltringham"), Scott McNurlin ("McNurlin"), Diane Bateman ("Bateman"), Christy Miro ("Miro"), Timothy Randall ("Randall", and Paula Wyant ("Wyant") (collectively "Defendants.")

On October 24, 2024, the Court sustained the demurrers (with leave to amend) and granted the motions to strike as moot which were filed by 1) Defendants City, Callen and Broglio and 2) Defendants McNurlin, Bateman, Miro, Eltringham, Randall, and the District. In that Ruling, the Court gave Plaintiff twenty (20) days to file a Second Amended Complaint ("SAC").

Well over twenty days have passed and Plaintiff has not filed a Second Amended Complaint. Now before the Court is Defendants City, Callen and Broglio's Motion to Dismiss [First] Amended Complaint Following Order Granting Demurrer ("Motion"). Defendants McNurlin, Bateman, Miro, Eltringham, Randall, and the District have filed a joinder to the Motion.

Pursuant to Code of Civil Procedure section 581(f)(2) the Court may dismiss the complaint when:

Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.

Plaintiff was aware that the demurrers were granted in October 2024 as is made clear by his request to enlarge the time to respond to said demurrers. Plaintiff failed to file the amended complaint as ordered by the Court. Accordingly, the Motions to Dismiss are **GRANTED** as to all Defendants.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare formal Order complying with Rule of Court 3.1312 in conformity with this Ruling.